

25STCV38665 25STCV38665

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Case Number: 25STCV38665 Hearing Date: July 2, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

ROBERT CAMPBELL and MARY CAMPBELL,

Plaintiffs,

v.

3M COMPANY, et al.,

Defendants.

Case No. 25STCV38665

Hearing Date: July 2, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

ROCKWELL AUTOMATION'S MOTION FOR SUMMARY
JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

I.

Background

On December 30, 2025, Plaintiffs Robert and Mary Campbell filed their complaint for personal injury alleging Mr. Campbell developed mesothelioma from occupational exposure to asbestos-containing construction products, electrical products, and pumps from the 1950s to the 1990s. Plaintiffs sue Rockwell for its activities manufacturing electrical panels and electrical products under the names Allen-Bradley Company, LLC ("Allen Bradley") and Rostone Corporation ("Rostone").

On May 13, 2026, Defendant Rockwell Automation ("Rockwell" or "Defendant") moved for summary judgment on the grounds that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Campbell was exposed to asbestos by an asbestos-containing product for which Rockwell was responsible.

On June 12, 2026, Plaintiffs opposed, arguing that their discovery responses raise triable issues of material fact. Alternatively, Plaintiffs request that the court continue this matter to allow them to complete the deposition of Rockwell's Person Most Qualified ("PMQ").

On June 18, 2026, Rockwell replied arguing that Plaintiffs' additional evidence fails to demonstrate that Mr. Campbell was exposed to an asbestos-containing product for which it was responsible.

Rockwell

satisfied its initial burden to show Plaintiffs lack and cannot reasonably obtain needed evidence to support their causes of action against it. Plaintiffs' discovery responses were factually devoid as to whether any

asbestos-containing products for which Rockwell was responsible exposed Mr. Campbell to asbestos. Plaintiffs fail to present affirmative evidence to support their claims. Therefore, the court grants Rockwell's motion for summary judgment. Rockwell's motion for summary adjudication is moot. Plaintiffs' request for a continuance is denied.

II.

Evidentiary Objections

Plaintiffs' Objections

Sustained:

1. "[I] will testify about the history of the Allen-Bradley Company and its products." [Jaap Decl. at ¶ 3.]

Mr. Jaap's declaration provides no basis for his personal knowledge as to the facts within his declaration. There is no indication that Mr. Jaap was employed by Defendant between 1964 and 1985, or otherwise had personal knowledge of the facts stated in his declaration during that time period. Moreover, he is not qualified as an expert and therefore not entitled to rely on hearsay, including the unidentified "product literature, testing, bills of material, and engineering records" which were not placed into the record. (Jaap Decl. at ¶7.) Accordingly, Mr. Jaap's declaration is inadmissible for lack of foundation. (See LAOSD Asbestos Cases (2023) 87 Cal.App.5th 939, 951 ["Even assuming for the sake of argument that Gallo could 'channel' information received from individuals who had personal knowledge of events and could testify as witnesses, there is no indication that such persons were the source of Gallo's information.¿Given the timeframe involved, Gallo is most likely 'channeling' information from people who not only lacked personal knowledge themselves, but acquired their information from people who also lacked personal knowledge.¿This oral passing of information raises exactly the reliability concerns which animate the personal knowledge requirement, not to mention the rule against hearsay."])

Plaintiffs' objections 2 through 20 to the declaration of Mr. Jaap are sustained for the same reasons.

Defendant's Objections

Sustained:

1. Declaration of Michael

T. Stewart ("Stewart Decl."), ¶ 2, Exhibit 1 is a copy of excerpts of Plaintiff Robert Campbell's deposition, Volume 1, pp. 18:17 19:4.

Rockwell objects to portions of Mr. Campbell's deposition testimony on the grounds that the testimony is immaterial, irrelevant, and prejudicial because the testimony pertains to Mr. Campbell's time in the navy or pertains to other electrical parts manufacturers, not Rockwell. As Rockwell points out, Mr. Campbell testified that he did not associate Allen Bradley with the navy. (Stewart Decl., Exh. A at 265:18-20.) Accordingly, the testimony about Mr. Campbell's work with electrical components aboard navy ships is not relevant to this motion. Additionally, the excerpts pertaining to other electrical components manufacturers are not relevant to this motion. The objection is sustained.

2-4, 7-8, 10. Sustained

for the same reasons as objection number 1.

11. Stewart

Decl., ¶ 3, Exhibit 3 is a copy of excerpts of Andrew Jaap's discovery deposition testimony on behalf of Rockwell in Rodriguez v. Sequoia Ventures, Inc. et al., ACSC Case No. 24CV074239. This testimony is inadmissible hearsay. Plaintiffs fail to identify a valid hearsay exception to support the admissibility of this prior testimony. Plaintiffs fail to rebut the general rule against the admissibility of former deposition testimony. (Berroteran v. Superior Court (2022) 12 Cal.5th 867, 895 ["The party urging admission of deposition testimony bears the burden of rebutting the general rule by submitting appropriate information justifying the admission of designated deposition testimony."].) Plaintiffs offer no evidence or argument to support the admissibility of this deposition and do not address whether this deposition was intended to serve as a trial preservation transcript, whether a subsequent agreement was made to use the deposition as trial testimony, or that any of the Berroteran factors bear in favor of the admissibility of the deposition.

Objections 12-14 are sustained for the same reasons as

objection number 11.

Overruled:

5. Stewart Decl., ¶ 2,

Exhibit 1 is a copy of excerpts of Plaintiff Robert Campbell's deposition, Volume 1, pp. 61:8-14, 61:25 62:25. This portion of the deposition testimony does pertain to Allen Bradely because Mr. Campbell answers questions about whether he is familiar with the brand.

6, 9. Overruled for the same reasons as objection number 5.

III.

Discussion

A.

Legal Standard

A defendant seeking summary judgment must "conclusively negate[] a necessary element of the plaintiff's case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial." (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing "that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) "The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing." (Id. at p. 855.) " 'If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff's factually devoid discovery responses.' " (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In asbestos litigation, a plaintiff is required to show causation. A plaintiff must show “some threshold exposure to the defendant’s defective asbestos-containing products” and must further establish in “reasonable medical probability” that a particular exposure or series of exposures was a “legal cause” of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.)

“[T]he proper analysis is to ask whether the plaintiff has proven exposure to a defendant’s product, of whatever duration, so that exposure is a possible factor in causing the disease and then to evaluate whether the exposure was a substantial factor.” (Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416.)

Where a plaintiff’s allegations pertain to asbestos as an intended ingredient of a product the plaintiff was exposed to occupationally, the plaintiff is required to present evidence “defendant’s product was definitely at his work site and that it was sufficiently prevalent to warrant an inference that plaintiff was exposed to it...” (Turley v. Familian Corp. (2017) 18 Cal.App.5th 969, 980 [Citing Lineaweaver, supra, 31 Cal.App.4th at p. 1420.].) Where a defendant manufactures similar products, some of which contained asbestos and some of which did not, a plaintiff must present evidence from which the court can reasonably infer that it was more likely than not that the plaintiff was exposed to an asbestos-containing variety of the defendant’s product. (Collin v. CalPortland Co. (2014) 228 Cal.App.4th 582, 593.)

1.

Defendant’s Burden: Factually Devoid

Rockwell moves for summary judgment on the grounds that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Campbell was exposed to asbestos by an asbestos-containing product attributable to it. (Motion at p. 16 [“Plaintiffs’ factually devoid discovery responses contain ‘boilerplate answers’ and ‘laundry lists of people and documents’ that the Andrews Court held were sufficient to shift the burden on summary judgment to Plaintiffs. Rockwell specifically asked Plaintiffs to provide facts, witnesses, and documents substantiating their contention that

Mr. Campbell inhaled fibers released from asbestos-containing component parts in Allen-Bradley products...In response, Plaintiffs repeated generalized allegations without offering any evidence or specific facts necessary to validate these claims...This is precisely the type of deficient response contemplated by the Andrews Court that shifts the burden to Plaintiffs to proffer admissible evidence showing that a triable issue of fact exists.”.)

In opposition, Plaintiffs argue that their discovery responses raise triable issues of material fact because they establish Mr. Campbell worked with Rockwell/Allen Bradley/Roston electrical components between the 1960s and 1980s and that he received no warnings about asbestos. (Motion at pp. 10-12.)

In reply, Rockwell argues that Plaintiffs' additional evidence is insufficient to support their claim that Mr. Campbell was exposed to an asbestos-containing product for which Rockwell was responsible. (Reply at pp.2-3 [“Plaintiffs cannot reasonably infer that just because some products for which Rockwell is legally responsible may have contained small amounts of encapsulated chrysotile asbestos during a certain timeframe, that in and of itself, means that Mr. Campbell necessarily worked with or around that product in the first place, let alone that he was exposed to asbestos from that product. The key inquiry is whether the specific Rockwell products were in fact asbestos-containing... Plaintiffs do not and cannot proffer any such admissible evidence as their discovery responses failed to identify any specific component parts among generic “electrical products” and provide the above-referenced identification information or describe activities that caused alleged exposure.”].)

Rockwell relies on Plaintiffs' responses to written discovery and Mr. Campbell's deposition testimony to support its motion. When Rockwell asked Plaintiffs to “set forth all facts supporting [Plaintiffs'] contention that ROBERT CAMPBELL inhaled asbestos fibers released from products designed, manufactured or distributed by ROCKWELL,” Plaintiffs responded in relevant part:

“The Plaintiff worked at Sherman Electric and assisted in the construction of California State University – north hall and East Wing and auditorium for approximately 1.5 years. He also worked on new construction of the County Art Museum on Wilshire Blvd for approximately two years. He next worked on the new construction at Ernest

Lawrence Middle school on 10100 Variel Ave, Chatsworth, CA for about one year. At Shugart Electric, the plaintiff worked at Los Angeles Times newspaper building remodeling an existing building at First and Spring in Downtown LA. At Coronet Electric, he worked building a new mental hospital for about 8-9 months. He also worked building United Silver in City of Commerce for approximately 2-3 months. At Electroc Construction he worked on the CBS building in Studio City. In 1969, Plaintiff begins working for the City of Los Angeles and is assigned to work at LAX. He works on many buildings at LAX as an electrician. In the mid 1970s Plaintiff was assigned to the public works/general services in Van Nuys. He participated in the maintenance of city owned buildings. He worked in office buildings and libraries owned by the city. In the late 1970s and early 1980s, the Plaintiff worked in the LA Civic Center in the maintenance division. He worked in LA City Hall, City Hall East, City Hall South buildings and Parker Center. In the mid 1980s, the plaintiff worked in supervision in the General Services construction division.

Plaintiff does not personally know which products contained asbestos or asbestiform fibers. He worked with and around many construction products, including fire rated ceiling tiles, drywall, joint compound, floor tiles, electrical products. He recalls Lo-Tone and Simpson fire rated ceiling tiles, Kaiser Gypsum, Georgia Pacific and Hamilton joint compounds and texturing, electrical products made by Square D, Cutler Hammer, Eaton, GE, Westinghouse, Allen Bradley, Crouse Hinds, Chico X and other electrical products. Plaintiff recalls working with Crouse Hinds electrical equipment and installing and removing Chico X from electrical conduits.

Based upon information and belief from his attorneys' preliminary investigation, it is believed that many of the products Plaintiff worked with and around would have contained asbestos. The exposure period at issue in this case is approximately 1957 to 2004."

(Golodnitska Decl., Exh. F at pp.2-3.) Plaintiffs also identified their responses to standard interrogatories, Mr. Campbell's deposition testimony, Mr. Campbell's employment and social security records, and Rockwell's business records as evidence supporting their claims. (Id.)

Mr. Campbell testified at his deposition that he recalled seeing Allen Bradley products between 1961

and 2009. (Golodnitska Decl., Exh. K at 265:10-15.) Mr. Campbell specifically associated Allen Bradley with motor control devices, switches, safety switches, circuit breakers, control devices, and power contactors. (Id. at 266:10-25, 267:7-12.) Mr. Campbell recalled seeing bold Allen Bradley logos on this equipment. (Id. at 267:16-20.) Mr. Campbell did not know the bulletin, series, size, or year of manufacture for any of the equipment he identified. (Id. at 268:15-19.) Although he performed routine maintenance on Allen Bradley equipment, he did not know of any previous work performed on the equipment. (Id. at 274:2-10.) Mr. Campbell does not recall having to drill, abrade, file, or sand Allen Bradley equipment. (Id. at 277:17-22.) Mr. Campbell had no reason to believe that the Allen Bradley products contained asbestos. (Id. at 278:17-20.)

Rockwell

meets its burden to show that Plaintiff's discovery responses are devoid of facts supporting their contention that Mr. Campbell was exposed to an asbestos-containing product for which it was responsible. Plaintiffs' discovery responses were required to provide a factual basis to show products for which Rockwell was responsible were present at Mr. Campbell worksite and that these products contained asbestos. (Turley, *supra*, 18 Cal.App.5th at p. 980, Collin, *supra*, 228 Cal.App.4th at p. 593.)

Plaintiffs' interrogatory responses are sufficient to establish that Allen Bradley products were present at Mr. Campbell's worksites. Mr. Campbell recalled specifically that he worked with Allen Bradley electrical components between 1961 and 2009. (Golodnitska Decl., Exh. K at 265:10-15, 266:10-25, 267:7-12.) Mr. Campbell recognized the equipment by the bold Allen Bradley logos on the equipment. (Id. at 267:16-20.) However, neither the written discovery responses nor Mr. Campbell's deposition testimony state a factual basis for Plaintiffs' contention that the Allen Bradley components present at Mr. Campbell's worksite contained asbestos. Plaintiffs made the interrogatory responses stating the products contained asbestos "based on information and belief," rather than an identifiable factual basis. (Golodnitska Decl., Exh. F at pp.2-3.) Mr. Campbell testified that he did not know whether the equipment contained asbestos and did not know details such as the equipment's bulletin, series, size, or year of manufacture. (Id. Exh. N at 268:15-19, 278:17-20.) Although Plaintiffs are not required to identify the equipment by the exact model number, there must be some evidence to support a reasonable inference that the equipment contained asbestos. Plaintiffs' discovery responses are devoid of facts establishing that the Allen Bradley equipment Mr.

Campbell worked with contained asbestos.

Plaintiffs' discovery responses support an inference that Plaintiffs lack and cannot reasonably obtain evidence to support their claim that Mr. Campbell was exposed to asbestos by an asbestos-containing product for which Rockwell was responsible. Accordingly, Rockwell meets its burden on summary judgment. The burden shifts to Plaintiffs.

2.

Plaintiffs' Burden

Plaintiffs

argue in opposition that their discovery responses and testimony were not factually devoid. (Opp. at p.12.) Plaintiffs also argue that their evidence raises triable issues of material fact. (Id. at p.13.) Plaintiffs present additional excerpts from Mr. Campbell's deposition, Rockwell's responses to standard interrogatories from a prior matter, and deposition testimony of Rockwell representatives from prior matters to support their opposition. As discussed, the court sustained Rockwell's objections to sections of Mr. Campbell's deposition transcript and the prior testimony of Rockwell's corporate representatives.

Mr.

Campbell testified that he could not recall specifically when he began working with Allen Bradley products. (Stewart Decl., Exh. 1 at 265:6-9.) Mr. Campbell cannot identify specific sites where he used Allen Bradley products. (Id. at 265:10-17, 266:1-9.) Mr. Campbell did not recall using the products in the navy but did associate them with heavy commercial or industrial-type jobsites. (Id. at 265:18-23.) Mr. Campbell recalled that the Allen Bradley enclosures were usually gray and that the equipment inside the enclosures were darker colors with some visible copper and silver contact points. (Id. at 267:25-268:14.) Mr. Campbell recalled that the motor control devices were larger or smaller depending on what they were controlling. (Id. at 269:5-24.) Mr. Campbell recalled that he worked with relays, motor control pumps, and compressors used in air conditioning systems. (Id. at 270:3-271:24.)

Plaintiffs

also direct the court's attention to Rockwell's responses to standard interrogatories which provide additional information about Rockwell's ownership of Allen Bradley and Rostone, among other things. (Stewart Decl., Exh. 2.) The

responses do not contain information about the asbestos content of its products.

Plaintiffs'

evidence fails to establish whether the Allen Bradley equipment Mr. Campbell encountered throughout his career contained asbestos. Although Mr. Campbell's deposition testimony provided additional details about the color and shape of the products he worked with, these details are vague and provide no information about whether the products contained asbestos. Mr. Campbell's testimony about how the products were used likewise provides no information about whether they contained asbestos.

Accordingly,

Plaintiffs fail to meet their burden to raise a triable issue of material fact over whether an asbestos-containing product for which Rockwell was responsible was present at Mr. Campbell's worksites. Therefore, Rockwell's motion for summary judgment is granted.

C.

Plaintiffs' Request for a Continuance

Plaintiffs request a

continuance to allow them to take the deposition of Rockwell's PMQ. Plaintiffs argue that the deposition was noticed for June 4, 2026 but could not move forward because Rockwell objected to the deposition. (Opp. at pp.16-17.)

Plaintiffs argue the deposition is essential to the opposition because it would cover "(1) the asbestos content of Rockwell's/Allen Bradley's/Rostone's electrical products; (2) its knowledge about the asbestos-related hazards of those products; (3) its asbestos-related warnings, protections, and monitoring given to its employees; (4) its asbestos-related warnings given to its customers and end-users; and (5) its decisions to stop making and stop selling its asbestos-containing electrical products." (Opp. at p.16.)

"If it appears from

the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any

time on or before the date the opposition response to the motion is due.” (Code Civ. Proc., § 437c, subd. (h).)

Here, Plaintiffs

fail to show that the deposition of Rockwell's PMQ would reveal facts essential to justify opposition. Even if Plaintiffs took the deposition, Mr. Campbell's deposition testimony shows that he cannot recall where he used the Allen Bradley products at issue and can recall very few details about the products. Mr. Campbell recalls at most that the equipment he used was in a gray enclosure with dark-colored components inside with copper or silver contact points. (Stewart Decl., Exh. 1 at 267:25-268:14.) Plaintiffs fail to explain how these vague details are sufficient to allow a PMQ to identify which products Mr. Campbell worked with and whether they contained asbestos. Even if a PMQ witness provides general information about the asbestos-containing products Allen Bradley produced between 1961 and 2009, there is no evidence that this evidence, coupled with Mr. Campbell's limited description of the products he worked with, would support an inference that the products he worked with contained asbestos. Accordingly, the request for a continuance is denied.

IV.

Conclusion

Rockwell

satisfied its initial burden to show Plaintiffs lack and cannot reasonably obtain needed evidence to support their causes of action against it. Plaintiffs' discovery responses were factually devoid as to whether any asbestos-containing products for which Rockwell was responsible exposed Mr. Campbell to asbestos. Plaintiffs fail to present affirmative evidence to support their claims. Therefore, the court grants Rockwell's motion for summary judgment. Rockwell's motion for summary adjudication is moot. Plaintiffs' request for a continuance is denied.